

Section 2

Legal Authority & Statutory Framework

Version 2.0 — Preliminary Draft

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■ PRELIMINARY DRAFT — NOT FOR CITATION OR DISTRIBUTION WITHOUT PERMISSION

PETITION TO AUDIT — IOWA DEPARTMENT OF HEALTH AND HUMAN SERVICES

CHILD WELFARE SYSTEMS — SECTION 2

SECTION 2 — STATUTORY & REGULATORY FOUNDATION, DEFINITIONS, SCOPE & INTERPRETIVE FRAMEWORK

Version 1.0 | June 5, 2026

Audit Petition Packet v2.0 (5/2026)

NOTE TO READER: This section establishes the legal, regulatory, and interpretive foundation for every finding, citation, and classification in this petition. Read this section before any substantive section.

Terms used throughout this packet carry the specific meanings defined here — not lay usage and not agency self-definition. The full methodological framework governing how findings are classified, weighted, and attributed is in Section 5.

2.1 JURISDICTIONAL AUTHORITY

2.1.1 State Audit Authority

This petition is submitted pursuant to two independent grants of state audit authority vested in the Iowa Auditor of State:

IOWA CODE § 11.6 — CITIZEN-INITIATED AUDIT APPLICATION

Any taxpayer may petition the Auditor of State to examine the accounts and financial affairs of a state agency, board, commission, or

institution. This petition is submitted under § 11.6(3), which authorizes citizen-initiated requests for audit review of publicly funded agencies. The statutory standard does not require the petitioner to demonstrate specific financial harm — documented systemic oversight failure in the administration of public funds is sufficient basis for audit consideration.

Source: Iowa Code § 11.6

URL: <https://www.legis.iowa.gov/law/iowaCode/sections?codeChapter=11&session=90>

IOWA CODE § 11.24 — DISCRETIONARY AUDIT AUTHORITY

The Auditor of State holds independent discretionary authority to examine any state agency receiving or administering public funds where conditions suggest potential irregularity, control weakness, or systemic failure.

This authority is not contingent on citizen petition — it exists as an independent oversight function of the Auditor's office. This petition identifies conditions that may independently trigger § 11.24 authority, separate from and in addition to the § 11.6(3) citizen petition.

Source: Iowa Code § 11.24

URL: <https://www.legis.iowa.gov/law/iowaCode/sections?codeChapter=11&session=90>

2.1.2 2022 Reorganization — Continuity of Audit Jurisdiction

Effective July 1, 2022, the Iowa Department of Human Services (DHS) was reorganized and folded into the Iowa Department of Health and Human Services (DHHS/HHS). This reorganization was administrative — it did not create a new legal entity, extinguish prior obligations, or terminate the audit trail of decisions made under DHS. For purposes of this petition:

- Records, contracts, funding streams, and decisions originating under DHS that were transferred to or relied upon by HHS remain subject to full audit jurisdiction under Iowa Code § 11.
- References to "Iowa HHS," "Iowa DHHS," and "Iowa DHS" in this petition are used interchangeably when referring to the child welfare functions of either the predecessor or successor agency.
- The legal continuity of obligations, corrective action plans, and federal oversight findings across the reorganization boundary has been verified against source documents in the evidentiary record.

The audit jurisdiction sought under this petition is not limited to the

post-reorganization period. The review period spans 2003 to present — encompassing the full CFSR longitudinal record — and the Auditor's authority under § 11.6 and § 11.24 extends to that full period.

2.1.3 Federal Oversight Authority Framework

Iowa's child welfare system receives substantial federal funding under the following federal statutes, each of which imposes specific compliance conditions as a condition of continued funding:

Title IV-E — Foster Care, Adoption Assistance, and Guardianship

42 U.S.C. §§ 670–679c

Administered by the Administration for Children and Families (ACF), Children's Bureau. Requires state plans, program reviews (CFSRs), and Performance Improvement Plans (PIPs) for states that fail conformity determinations.

Title IV-B — Child Welfare Services and Promoting Safe and Stable Families

42 U.S.C. §§ 620–628b

Requires Child and Family Services Plans (CFSPs), Annual Progress and Services Reports (APSRs), and maintenance of approved state plans as conditions of funding.

Child Abuse Prevention and Treatment Act (CAPTA)

42 U.S.C. §§ 5101–5106h (as amended)

Requires state plans governing child abuse and neglect prevention, investigation protocols, and reporting systems.

Adoption and Safe Families Act (ASFA) — P.L. 105-89

Establishes statutory timelines governing reunification, permanency, and termination of parental rights. Non-compliance creates federal compliance exposure.

Adoption Assistance and Child Welfare Act — P.L. 96-272

Establishes the "reasonable efforts" standard governing removal and reunification decisions. The standard is enforceable through federal oversight and state judicial proceedings.

Indian Child Welfare Act (ICWA)

25 U.S.C. §§ 1901–1963

Governs child welfare proceedings involving children who are or may be members of a federally recognized Indian tribe. Requires active efforts, tribal notification, qualified expert witness testimony, and placement preferences. ICWA compliance deficiencies documented in CFSR Round 1 (Woodbury County) remain in the longitudinal oversight record.

American Rescue Plan Act (ARPA) — P.L. 117-2, Section 9817

Extended enhanced federal medical assistance percentage (FMAP) rates contingent on compliance with Maintenance of Effort requirements for Medicaid and CHIP programs administered by Iowa HHS.

Regulation Reference:

45 C.F.R. Parts 1355–1357 — Federal requirements for child welfare programs, including CFSR methodology, PIP requirements, and state plan conditions.

Federal implementing agency: Administration for Children and Families (ACF), U.S. Department of Health and Human Services, Children's Bureau.

URL: <https://www.acf.hhs.gov/cb>

2.1.4 Relationship Between State and Federal Audit Authority

The Iowa Auditor of State's jurisdiction under Iowa Code § 11 is independent of federal oversight authority. The Children's Bureau's CFSR process is a federal compliance mechanism operating under federal statute. State audit authority under § 11 is not displaced or preempted by federal oversight — the two are complementary and non-exclusive.

This petition argues that the structural design of CFSR Round 4 (analyzed in Section 7) and the suspension of the PIP enforcement mechanism under Technical Bulletin #14 (December 2025) have reduced federal corrective pressure at the precise moment when longitudinal data documenting 23 years of non-conformity would most warrant it. Iowa Code § 11 state audit authority fills that accountability gap. The two oversight mechanisms are not duplicative — they operate at different levels of government, with different evidentiary standards, different remediation tools, and different enforcement mechanisms.

2.2 COVERED SUBJECT MATTER & SCOPE BOUNDARIES

2.2.1 In Scope

This petition covers the following subject matter:

CHILD WELFARE FUNCTIONS: All child protection, foster care, family preservation, reunification, adoption, guardianship, and related family services functions administered by Iowa DHS (pre-2022) and Iowa HHS (post-2022), including:

- Safety and risk assessment tools and practices
- Case planning, service delivery, and provider oversight
- Removal authorization and reunification decision systems
- Placement monitoring, licensing, and safety re-assessment
- Termination of parental rights proceedings and documentation

FEDERAL OVERSIGHT COMPLIANCE: All activities associated with Iowa's participation in federal CFSR review cycles, PIP development and implementation, APSR submissions, CFSP filings, and CAPTA grant compliance, spanning Rounds 1 through 4 (2003–present).

FINANCIAL CONTROLS AND FEDERAL FUNDS: All federal funding streams identified in Section 2.1.3, including grant administration, cost allocation, subrecipient monitoring, and reimbursement claim integrity.

DATA AND INFORMATION SYSTEMS: Iowa's child welfare data infrastructure, including the FACS system (legacy), the VISION system (transition), and the CCWIS (Comprehensive Child Welfare Information System) currently under development and implementation under contract with Google/Carahsoft (analyzed in Section 18 and Companion Document 2).

CONTRACTED PROVIDER OVERSIGHT: Monitoring, performance measurement, and accountability systems governing contracted child welfare service providers, including Family Safety, Risk, and Permanency (FSRP) service contractors, behavioral health providers, and placement facilities.

CORRECTIVE ACTION HISTORY: The full record of Performance Improvement Plans, Auditor of State recommendations, Ombudsman findings, and independent evaluation findings from 2003 to present, evaluated for implementation and sustained effectiveness.

2.2.2 Out of Scope

The following are expressly outside the scope of this petition:

- Tax administration and revenue matters unrelated to child welfare
- General transportation or infrastructure complaints
- Prison operations and adult corrections
- Healthcare licensing matters unrelated to child welfare
- Individual civil or criminal litigation proceedings, except where court records are cited as primary source evidence of systemic deficiencies
- Any matter addressed by this petition for which the petitioner seeks personal relief — individual relief is sought separately in a pro se motion to vacate filed in the originating court jurisdiction (see Section 16 for scope limitation statement)

2.2.3 Temporal Scope

The review period for purposes of this petition is 2003 to present, anchored to the initiation of Iowa's first CFSR review cycle. Certain findings reference earlier material (the 2000 Shelby Duis investigation) where those findings establish baseline context for the longitudinal deficiency record. All findings are time-stamped to their source documents. The review period is not limited by the 2022 reorganization boundary — see Section 2.1.2 for jurisdictional continuity analysis.

2.3 DEFINITIONS — FEDERAL AND REGULATORY TERMS

Terms in this section carry the meaning specified here throughout the petition. Where a term has a different colloquial or agency-internal usage, the definition below controls.

CFSR — Child and Family Services Review

The federal performance review process administered by the Children's Bureau under 45 C.F.R. § 1355.32. Consists of a Statewide Assessment (state self-report), a federal onsite review, a Final Report, and (where the state fails conformity determinations) a Performance Improvement Plan. Iowa has completed three rounds (2003–2004, 2010–2011, 2018–2019). Round 4 is currently ongoing.

PIP — Performance Improvement Plan

The corrective action instrument required under 45 C.F.R. § 1355.35

when a state fails CFSR conformity determinations. Iowa has submitted PIPs after each of its three completed CFSR rounds. The Round 3 PIP was never formally approved at final submission (see Section 6). Technical Bulletin #14 (December 2025) modified the PIP requirement for Round 4.

CFSP — Child and Family Services Plan

The five-year federal compliance plan required under 42 U.S.C. § 622 governing Iowa's child welfare program administration. Iowa's current CFSP covers FFY 2025–2029 (Attachment A9).

APSR — Annual Progress and Services Report

The annual self-report submitted by Iowa to the Children's Bureau under 42 U.S.C. § 622(b)(13), documenting progress against CFSP commitments. Iowa's FFY2026 APSR is Attachment A6.

CAPTA — Child Abuse Prevention and Treatment Act

Federal grant statute under 42 U.S.C. § 5101 et seq. Iowa's CAPTA grant for FFY2026 is Attachment A7. CAPTA grant documentation is used in this petition as a source of state-admitted operational deficiencies.

Title IV-E — Federal foster care and adoption assistance funding.

Iowa's primary federal child welfare funding stream. Administered under 45 C.F.R. Parts 1355–1357. Federal reimbursement is contingent on state compliance with IV-E eligibility requirements and CFSR conformity.

CCWIS — Comprehensive Child Welfare Information System

The federal technology standard replacing legacy systems under 45 C.F.R. Part 1355 Subpart C. Iowa's CCWIS project is under development under contract with Google/Carahsoft. CCWIS documents are Attachments A44–A50.

ICAPP — Iowa Child and Adolescent Performance Project

Iowa's statewide child welfare case management contracting framework. Annual ICAPP evaluation reports are Attachments A15 (2019–2023 series).

FSRP — Family Safety, Risk, and Permanency

Private contracted service providers who deliver family preservation, visitation, and safety monitoring services under state contract. FSRP contractor performance and oversight are addressed in Sections 9, 10, and 12.

KinderTrack — Iowa's child welfare data tracking and reporting system used

for longitudinal outcome measurement and performance reporting, particularly for early childhood and foster care populations. KinderTrack data is cited in the Harkin Institute analysis (Attachment A22) and in independent evaluations of Iowa's child welfare outcomes.

SDM — Structured Decision Making

A risk and safety assessment tool system used by Iowa child welfare workers to guide removal, safety planning, and case progression decisions. SDM validation and override documentation is addressed in Sections 5, 9, and 13.

FACS — Family and Children's System (legacy)

Iowa's legacy child welfare data management system, replaced by VISION and being superseded by CCWIS.

VISION — Iowa HHS legacy case management system, currently transitioning to CCWIS. Data integrity concerns associated with VISION are addressed in Section 18.

ANI — Area Needing Improvement

The federal designation assigned by the Children's Bureau when a state fails to achieve substantial conformity with a CFSR outcome item or systemic factor. Iowa has received ANI designations across all three completed review cycles on Safety, Permanency, and Well-Being outcomes.

Substantial Conformity — The federal CFSR passing standard. A state must achieve 95% or greater on applicable cases to be in conformity with any outcome. Iowa has never achieved substantial conformity on Permanency Outcome 1 across any completed review cycle.

QA — Quality Assurance

Iowa's internal case review and performance monitoring system. Iowa's QA system was rated ANI in Round 1, Round 2, and Round 3. In Round 2, the state's QA self-report exceeded the federal determination by 23–28 points on caseworker visits. In Round 3, the state self-rated QA as a Strength; the federal determination was ANI. QA system reliability is addressed in Sections 6 and 13.

PPRCP — Post-Permanency Risk Convergence Profile

The original analytical framework developed by the petitioner for this petition. It identifies the convergence of documented systemic risk

factors — placement instability, monitoring gaps, safety re-assessment failure, and corrective action non-response — that persist or emerge after a child achieves legal permanency (adoption, guardianship, or TPR). The PPRCP is the unique analytical contribution of this petition and the analytical lens through which the Drew placement evidence is interpreted as a systemic data point rather than an individual grievance.

2.4 ACRONYM INDEX

ACF Administration for Children and Families (federal)
ADA Americans with Disabilities Act
ARPA American Rescue Plan Act
ASFA Adoption and Safe Families Act
AOS Auditor of State (Iowa)
APSR Annual Progress and Services Report
CAPTA Child Abuse Prevention and Treatment Act
CBS Community-Based Services (Iowa transformation initiative)
CCWIS Comprehensive Child Welfare Information System
CFSR Child and Family Services Review
CFSP Child and Family Services Plan
CRIPA Civil Rights of Institutionalized Persons Act
DHS Iowa Department of Human Services (legacy — pre-July 1, 2022)
DHHS Iowa Department of Health and Human Services (post-July 1, 2022)
DOJ U.S. Department of Justice
EBP Evidence-Based Practice
ECI Early Childhood Iowa
FACS Family and Children's System (legacy data system)
FFPSA Family First Prevention Services Act
FSRP Family Safety, Risk, and Permanency (contracted service providers)
FTDM Family Team Decision Making
GAGAS Generally Accepted Government Auditing Standards
GAL Guardian ad Litem
HHS Iowa Department of Health and Human Services (abbreviated)
IAPD Implementation Advance Planning Document (CCWIS)
ICAPP Iowa Child and Adolescent Performance Project
ICWA Indian Child Welfare Act

IV-E Title IV-E (federal foster care funding)
IV-B Title IV-B (federal child welfare services funding)
KinderTrack Iowa child welfare longitudinal data tracking system
MCO Managed Care Organization
OCIO Office of the Chief Information Officer (Iowa)
ORR Open Records Request
PHI Protected Health Information
PIP Performance Improvement Plan
PPRCP Post-Permanency Risk Convergence Profile (petitioner-developed)
QA Quality Assurance
SDM Structured Decision Making
SSBG Social Services Block Grant
TANF Temporary Assistance for Needy Families
TB Technical Bulletin (Children's Bureau)
TPR Termination of Parental Rights
VISION Iowa HHS case management system (transition-era)

2.5 ATTACHMENT ARCHITECTURE OVERVIEW

This petition uses a three-document submission architecture:

DOCUMENT 1: PRIMARY PETITION (this document)

Twenty sections (0–20) plus front matter. Contains all substantive analysis, findings, audit questions, and corrective action requests.

Section references to attachments are in the format [A##].

Companion report cross-references are designated: → CFSR CR or → CCWIS CR.

DOCUMENT 2: CFSR LONGITUDINAL FORENSIC ANALYSIS AND ROUND 4 STRUCTURAL

INTEGRITY ASSESSMENT — Companion Report v1.1 (May 30, 2026)

Living document. Complete analytical record of all four CFSR rounds, including item-level data, verbatim admissions, workforce trajectory analysis, PIP accountability analysis, and Round 4 structural integrity assessment. Section 6 and Section 7 of the primary petition are condensed overviews that cross-reference this companion report.

DOCUMENT 3: IOWA CCWIS VISION OVERSIGHT AND IT PROCUREMENT COMPLIANCE

REPORT — Companion Report v1.2 (May 30, 2026)

Living document. Treats transparency failures, procurement gaps, and PHI access deficiencies in Iowa's CCWIS implementation as primary audit findings. Section 18 of the primary petition is a condensed overview that cross-references this companion report.

ATTACHMENT NUMBERING SYSTEM

Primary attachments are numbered A01–A52 (with gaps at A31 and A32, which have been reclassified as body content). Sub-attachments are designated with letter suffixes as follows:

A15-A through A15-E — Consolidated ICAPP Evaluation Reports (SFY 2019–2023)

A16-A through A16-H — Early Childhood Iowa Annual Reports (FY2018–FY2025)

A22-A through A22-M — Consolidated AOS Reports of Recommendations (2009–2021)

A27-A through A27-P — Consolidated Ombudsman Annual Reports (2010–2025)

A42A–A42D — ORR records requests and communication logs

(Requests #26-927 and #26-1536) Pending attachment A57

(Grassley call record) will be incorporated when received.

Clean attachment range: A01–A30, A33–A52 (49 primary attachments).

The authoritative attachment index is maintained in the evidentiary metadata spreadsheet (v2.4). Section 4 of this petition (Document Sourcing & ORR Record) contains the full navigational index.

2.6 READER GUIDANCE NOTICE (Full Version)

This petition is designed to be read in sequence. Each section builds on prior sections — definitions established here govern analysis in Sections 6–19; the methodology established in Section 5 governs how all findings are classified and weighted; the attachment index in

Section 4 enables traceability of every evidentiary claim.

SELECTIVE READING WARNING: This petition addresses a 23-year longitudinal oversight record. Any individual section, read in isolation, will appear to present a partial picture. Sections 6–19 are designed to be mutually reinforcing — the same deficiencies appear across multiple independent evidentiary sources, which is precisely the point. Selective reliance on any single section, or on sections that

appear to conflict with agency self-report, should be resolved by reference to the primary source documents in the attachment record — not by deferring to agency characterization.

THREE-DOCUMENT CAUTION: The primary petition is a condensed analytical document. For sections that carry companion report cross-references, the companion report is the authoritative analytical record. The primary petition's summary does not supersede the companion report's full analysis — it summarizes it.

EVIDENTIARY STANDARD: All findings in this petition are observation-based under GAGAS standards. No finding asserts certainty beyond what the cited primary source establishes. Where inference is the honest characterization, inference language is used. Where the source directly establishes the finding, direct citation language is used. The distinction is material and deliberate.

DOMAIN & DEFICIENCY MAPPING — SECTION 2

Section 2 is the definitional and jurisdictional foundation layer.

It does not independently generate deficiency findings. The domain and deficiency framework defined in Section 2.3 and the full methodology in Section 5 govern classification throughout the petition.

All Domains A–H and all Deficiency Categories F1–F13 are defined and operationalized in Sections 2.3 and 5 respectively. This section establishes the meaning of those classifications — it does not apply them to findings.

AUDIT QUESTIONS GENERATED — SECTION 2

AUDIT QUESTION 2-A: Iowa Code § 11.6(3) authorizes citizen-initiated audit applications. What is the Auditor of State's current documented policy for evaluating citizen petitions that present multi-cycle federal oversight findings as the primary evidentiary basis, and what threshold of documented deficiency triggers initiation of a formal audit review?

AUDIT QUESTION 2-B: The 2022 DHS-to-HHS reorganization was administrative in nature. What formal determination, if any, did the

Iowa Auditor of State make regarding continuity of audit jurisdiction
over pre-reorganization DHS records, contracts, and funding obligations
following the July 1, 2022 transition?

AI assistance disclosure: See Section 5.8.

End of Section 2 — Version 1.0 — June 5, 2026

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AI assistance disclosure: See Section 5.8.

AI assistance was used materially in the preparation of this document. That assistance does not constitute independent verification of any factual claim.